

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, February 23, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23850 against Police Officer Ryan Barba, Tax Registry No. 964908. The case was conferenced on February 9, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of Command Discipline Schedule (A), forfeiture of THREE (3) vacation days.

Matthew Kadushin

Acting Executive Director,
Matthew Kadushin
New York City Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 12, 2023

Re: CCRB Case No. 201907564 (Incident Date: August 12, 2019) involving Police Officer Ryan Barba, Tax No. 964908 (DADS No. 2021-23850)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegation against Police Officer Ryan Barba and determined that the actions of Police Officer Barba do not warrant discipline.

In this case, police officers inside the cells of the 67th Precinct faced a potentially dangerous situation where an individual refused to give up his sneakers, which he had pulled inside the cell from behind bars. The sneakers had been taken away because they contained laces that he had refused to remove. It was not unreasonable for Police Officer Barba to draw and display his CEW to ensure the safety of everyone inside the cell, particularly his fellow officer. Thus, based on the totality of the available evidence, including camera footage, the actions of Officer Barba do not warrant the imposition of a disciplinary penalty.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter, and Police Officer Barba will receive no disciplinary action.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

October 16, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201907564 (Incident Date: August 12, 2019) involving Police Officer Ryan Barba, Tax No. 964908 (DADS No. 2021-23850)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 12, 2023. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend on dismissing the charges and specifications in this matter and imposing no disciplinary penalty on Officer Barba, as you determined Officer Barba’s actions to be “not unreasonable”.

We disagree with the Police Commissioner’s determination that Officer Barba’s conduct in pointing his CEW at § 87(2)(b) was not unreasonable. On February 9, 2023, in front of Assistant Deputy Commissioner Paul Gamble, Officer Barba accepted the findings of substantiation of the allegations contained in the Charges and Specifications and agreed to receive a Command Discipline Schedule (A) and the forfeiture of three (3) vacation days.

NYPD Patrol Guide 221-08 clearly spells out the circumstances under which a member of service may use their CEW on a civilian. They may use their CEW against persons who are actively resisting, persons exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons. The evidence in this case, including camera footage, clearly demonstrated that none of these situations were present when Officer Barba pointed his CEW. § 87(2)(b) was not actively resisting, he was not being actively aggressive, nor was he

threatening to injure himself or anyone else. Consequently, it was improper for Officer Barba to threaten to use his CEW against § 87(2)(b)

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Officer Barba, and impose upon Officer Barba a Command Discipline Schedule (A) and the forfeiture of three (3) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Jonathan Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board